Case Brief

Harish Rana v/s Union of India and Ors.

Court - Supreme Court of India

Date of Decision - 11 March 2026

Bench – 1. Justice J. B. Pardiwala
2. Justice K. V. Viswanathan

Relevant Laws

- Article 21 of the Constitution of India - Right to Life and Personal Liberty
- Article 14 of the Constitution of India - Equality before law
- Passive euthanasia framework recognized in Common Cause v. Union of India

Facts of the Case

Harish Rana suffered a severe head injury in 2013 after an accidental fall, which left him in a persistent vegetative state with complete neurological impairment. Since the incident, he remained dependent on artificial life-sustaining treatment, including assisted feeding and medical care, and was unable to communicate or regain consciousness.

For more than thirteen years, his condition remained medically unchanged. Doctors treating him concluded that the damage to the brain was irreversible and the chances of recovery were extremely remote. His family continued to bear the emotional and financial burden of long-term medical care while witnessing no improvement in his condition.

Consequently, the petitioner approached the Supreme Court seeking permission to withdraw life-sustaining treatment, arguing that continuing artificial support only prolonged biological existence without dignity. The Court constituted independent medical boards to examine the patient and determine the medical feasibility of recovery.

The medical boards confirmed that the patient was in a permanent vegetative state with negligible chances of regaining consciousness, raising the constitutional question of whether withdrawal of treatment could be permitted under Article 21 of the Constitution, which protects the right to life and personal liberty.

Issues

1. Whether withdrawal of life-sustaining treatment in cases of irreversible vegetative state is legally permissible in India.
2. Whether the right to life under Article 21 includes the right to die with dignity.
3. Whether the passive euthanasia guidelines laid down in earlier Supreme Court judgments could be applied in the present case.

Arguments

Petitioner

The petitioner submitted that the patient had been in a permanent vegetative state for more than a decade with no possibility of recovery. It was argued that continued artificial life support merely prolonged biological existence and deprived the patient of dignity.

The petitioner relied on the Supreme Court's judgment in Common Cause v. Union of India, which recognized passive euthanasia and the right to die with dignity as part of Article 21. It was therefore contended that the withdrawal of life-sustaining treatment should be permitted where medical evidence establishes that recovery is impossible.

Respondents

The State submitted that any decision to withdraw life support must be approached with caution and must comply with strict procedural safeguards to prevent misuse. It emphasized the need for medical verification and judicial oversight before permitting passive euthanasia.

Judgment

The Supreme Court allowed the withdrawal of life-sustaining treatment and permitted doctors to discontinue artificial nutrition and hydration under proper medical supervision.

The Court observed that the right to life under Article 21 includes the right to live with dignity, and in certain circumstances this principle extends to a dignified end-of-life decision where continued medical intervention serves no therapeutic purpose.

The Court further held that the procedure must strictly follow the safeguards and medical evaluation standards laid down in earlier judgments governing passive euthanasia.

Ratio Decidendi

The Court held that:

- Article 21 protects not merely the continuation of biological life but life with dignity.
- Where a patient is in an irreversible vegetative state with no reasonable chance of recovery, withdrawal of life-sustaining treatment may be permitted.
- Such withdrawal must follow the safeguards laid down by the Supreme Court, including medical board evaluation and procedural oversight.

Cases Referred

- Aruna Ramchandra Shanbaug v. Union of India – Recognised passive euthanasia under strict judicial supervision.
- Common Cause v. Union of India – Recognised right to die with dignity and validity of living wills.
- Gian Kaur v. State of Punjab – Clarified the scope of the right to life under Article 21 in relation to end-of-life decisions.

Conclusion

This decision marks a significant development in Indian constitutional jurisprudence concerning end-of-life rights and medical autonomy. By allowing the withdrawal of life-sustaining treatment in cases of irreversible medical conditions, the Supreme Court reaffirmed that human dignity remains central to the interpretation of Article 21.

The judgment also highlights the importance of clear legal and medical procedures governing passive euthanasia, thereby strengthening the framework established in earlier landmark decisions.